

TENTATIVE RULING

Case: **Dillman Horse Ranch LLC v. Saldana**
Case No. CV2026-1853

Hearing Date: **August 28, 2026** **Department Two** **1:30 p.m.**

Defendant Rafael Saldana's motion to set aside default and default judgment is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) The Court finds that the attorney declaration does not set forth sufficient assertions of fact showing it was attorney's mistake, inadvertence, surprise, or neglect, that caused the default as opposed to defendant's mistake, inadvertence, surprise, or neglect, for the purposes of mandatory relief under Code of Civil Procedure section 473(b). (*Ibid*; Garate decl., ¶¶ 4-11.) Further, the Court finds defendant's declaration does not set forth facts sufficient to show the default judgment was taken against him through his mistake, inadvertence, surprise, or excusable neglect for purposes of discretionary relief under Code of Civil Procedure section 473(b). (Saldana decl., ¶¶ 3-7.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.